# DBW Management LLC, Vehicle Rental Agreement — Georgia

www.cargoatlanta.com

This agreement governs rentals between DBW Management LLC (www.cargoatlanta.com) ("Company") and the Renter ("Customer"). It consolidates the full 18-page version into a condensed 13-page format for attorney review, retaining all material terms.

DBW Management LLC Rental Agreement — Georgia (2025 Edition)

This agreement governs rentals between DBW Management LLC (www.cargoatlanta.com) ("Company") and the Renter ("Customer"). It replaces all previous versions and is customized for cargo van and small truck rentals in the State of Georgia.

DBW Management LLC Rental Agreement – Georgia (Editable Version)

Reservation Information:

Agreement No.:
Date Booked:
Today's Date:
Departure Date:
Return Date:
Mile Package:
Free Miles:
Insurance Policy #:
Insurance Type:
Insurance Company:

Renters Information:

Renter Name:
Phone Number:
Renters Address:
Renters Email:
Renters Date of Birth:
Age:
Renters Driver License Number:
Renters License Exp Date:

Additional Driver(s) information:

| Description | Information |
|---|---|
| Additional Driver's Name: | |
| E-mail: | |
| Phone Number: | |
| Date of Birth: | |
| Address: | |
| Drivers License: | |

MBA 2024 ©By signing below, you: agree to the terms and conditions of this Agreement as set forth on this Face Page, the Damage Report, and all pages of the Vehicle Rental Agreement Terms and Conditions;

Acknowledge that you had an opportunity to read the entire Agreement before signing;

represent that you are a capable and validly licensed driver;

Authorize us to process a separate payment card voucher in your name for all Charges, including Tolls and Violations, and to release your billing/rental information to third parties for billing/processing and other legitimate purposes; permit us to reserve against your payment card as a deposit the amount noted in the Charges column; authorize us to adjust your payment card account to reflect changes in amounts due or overpaid as a result of our final audit; and agree to our collection and use of vehicle data and texting and calling terms as described in Paragraphs 15 and 16 of the Vehicle Rental Agreement Terms and Conditions.

ALL CHARGES SUBJECT TO FINAL AUDIT.

| Rental Description | Rental Rate Type | Rental Days | Rental cost per day | Rental Total Cost |
|---|---|---|---|---|
| | | | $<br>$ | $<br>$ |
| | ---------- | | $ | $ |
| | ---------- | | $ | $ |
| | ---------- | | $ | $ |
| | ---------- | | $ | $ |
| | ---------- | | $ | $ |
| | ---------- | ---------- | ---------- | $ |
| | ---------- | ---------- | ---------- | $ |
| Sales Tax (8.9%) | ---------- | ---------- | ---------- | $ |
| Excise Tax (3%) | ---------- | ---------- | ---------- | $ |
| Total | | | $ | $ |

Cargo Van Details:

| **Description** | **Details** | **Description** | **Details** |
|---|---|---|---|
| Make: | | Color: | |
| Model: | | Mileage: | |

| | | | |
|---|---|---|---|
| Year: | | Vin: | |
| License Plate: | | | |

(i) If the Renter fails to refill the fuel tank upon returning the vehicle, a fuel charge of **$6 per gallon** will apply.

(ii) A **security deposit of $250** is required and will be held until the vehicle is returned in the same condition as rented.

(iii) Any **excess mileage** beyond the agreed limit will be charged at an additional rate of **per mile**.

# SELECT RENTAL AGREEMENT TERMS AND CONDITIONS
("Terms & Conditions")

1. Definitions. "Agreement" means all terms and conditions found in these Terms & Conditions, the "Face Page," and any additional documents you sign, or we provide at the time of rental. "Charges" means the fees and charges incurred under this Agreement. All amounts expressed under this Agreement shall be payable in U.S. Dollars. "Diminished Value" means the actual or perceived loss in market value or re sale value which results from a direct or accident loss. "Including" or "Includes" means "including (or includes), but not limited to," "including (or includes) without limitation," and similar constructions. "Loss of Use" means the loss of our ability to use the Vehicle for our purposes due to Vehicle damage or loss during the Rental Period, including use for rent, display for rent and sale, opportunity to upgrade or sell, or transportation of employees. "Rental Period" means the period between the time you take possession of the Vehicle and the time that the Vehicle is either returned to or recovered by us and checked in by us. "Vehicle" means the recreational vehicle, cargo van, cargo van or other motorized vehicle identified in this Agreement and any vehicle we substitute for it, and all its tires, tools, accessories, equipment, appliances, keys and Vehicle documents. "Vehicle License Fee," "Vehicle Licensing," or "Vehicle License Cost Recovery Fee," means a vehicle license cost recovery fee based on our estimated average per day per vehicle portion of our total annual vehicle licensing, titling, and registration costs. "You" or "your" means the person identified as the renter in this Agreement, each person signing this Agreement, each Authorized Driver, and every person or organization to whom charges are billed by us at its or the renter's direction. All persons referred to as "you" or "your" are jointly and severally bound by this Agreement. "We," "our," or "us" means DBW Management LLC (www.cargoatlanta.com).

2.Nature of Contract. This is a contract f or the rental of the Vehicle. You agree that you are not our agent for any purposes, and that you may not assign or transfer your obligations or sublease the Vehicle.

3.Authorized Drivers; Acknowledgments.

(a) You understand that for purposes of this Agreement, "Authorized Driver" means:

(i) the person identified as the "renter" on the Face Page.

(ii) each additional driver listed by us in this Agreement; and

(iii) any person specifically authorized to drive the Vehicle under applicable motor vehicle rental law. Each Authorized Driver must possess a valid driver's license and be at least age 2 5. Authorized Drivers are the only persons who are permitted to drive the Vehicle.

(b) You acknowledge that cargo vans and other cargo vans can be very large and handle differently than passenger cars and require more skill and expertise to operate safely than a passenger car does. For example, the Vehicle may require more clearance above, in front of, behind, and beside it to safely operate, and the use of mirrors and direct visual verification are always required to maintain knowledge of the location of adjacent vehicles and obstacles on the roadway. Spotters are recommended to assist the driver in backing Vehicles.

4.Inspection; Condition and Return of Vehicle; Repossession; No Warranties. You agree that you are renting the Vehicle "As Is," and that you had an opportunity to inspect it before leaving the premises. You must return the Vehicle:

(a) to our rental office or other location, we specify, on the date and time noted in this Agreement (or sooner up on our demand).

(b) in the same condition that you received it, except for ordinary wear; and

(c) with at least the same amount of fuel as when DBW Management LLC (www.cargoatlanta.com) rented unless we offer, and you purchase, a prepaid fuel option. To extend the Rental Period, you must first obtain our approval by contacting our rental office before the due -in date. To the fullest extent permitted by law, we may repossess the Vehicle at your expense without notice to you if the Vehicle is abandoned or used in violation of law or this Agreement. If the Vehicle is returned after closing hours, you remain responsible for all loss of or damage to the Vehicle until we inspect it upon our next opening for business (regardless of when such loss or damage occurred), and Charges may continue to accrue until that time. Service to the Vehicle or replacement of parts or accessories during the Rental Period must have our prior written approval. You must check and maintain all fluid levels. To the fullest extent permitted by law, we make no warranties, express, implied or apparent, regarding the Vehicle, no warranty of merchantability and no warranty that the Vehicle or any optional equipment that we rent to you for use with the Vehicle ("Optional Equipment") is fit for a particular purpose.

5.Responsibility for Damage or Loss. Regardless of fault, you are responsible for all damage to, loss of, or theft of the Vehicle during the Rental Period, including damage caused by collision or upset, weather, road conditions, vandalism, theft, and acts of God. Your responsibility includes:

(a) all damage to the Vehicle measured as follows:
(b) if determined that the Vehicle is a total loss, the actual cash value of the Vehicle, less salvage.
(c) if determined that the Vehicle is repairable:

(A) the difference between the value of the Vehicle immediately before the damage and the value immediately after the damage; or

(B) the reasonable estimated retail value or actual cost of repair plus Diminished Value (which, subject to state law and policy terms and conditions, is measured by calculating the actual cash value of the Vehicle just prior to damage less the value of the Vehicle after repair);

(b) Loss of Use, which is measured by multiplying your daily rental rate either by the actual or estimated number of days from the date the Vehicle is damaged until it is replaced or repaired, which you agree represents a reasonable estimate of Loss of Use damages and not a penalty. Loss of Use is payable regardless of fleet utilization.

(c) and administrative fee, calculated based on the damage repair estimate as follows, which you agree is reasonable: $0 -$250 damage=$50 fee; $251-$500 damage=$75 fee; $501 - $750 damage=$100 fee; $751 -$1500 damage=$150 fee; $1501 - $2500 damage=$200 fee; over $2500 damage =$250 fee.

(d) towing, storage, and impound charges and other reasonable incidental and consequential damages; and

(e) all costs associated with our enforcement of this Agreement or collection of Charges, including attorneys' fees, collection fees, and costs whether litigation is commenced. You are responsible for replacing missing equipment and Vehicle documents and keys. You must report all accidents or incidents of theft and vandalism to us and the police as soon as you discover them.

6.Prohibited Use of the Vehicle. The following uses of the Vehicle are prohibited and are material breaches of this Agreement ("Prohibited Uses"), including use of the Vehicle:

(a) by anyone who:

(i) is not an Authorized Driver, or whose driving license is suspended in any jurisdiction.

(ii) is impaired by or under the influence of alcohol, narcotics, intoxicants, or prescription or non -prescription medications that affect vehicle operation;

(iii) lacks experience operating a manual transmission if applicable.

(iv) is sitting, standing, or lying on the roof of the Vehicle.

(v) is smoking or vaping any substance in the Vehicle; or

(vi) provided false, misleading or fraudulent information to us or withheld information that would have caused us not to rent the Vehicle or extend the rental.

(b) in furtherance of any illegal purpose or under any circumstance that would constitute a felony or other violation of law (other than a minor traffic violation);

(c) to carry persons or property for hire.

(d) to push or tow anything (unless authorized by us in writing), to teach anyone to drive, or to carry objects on the roof of the Vehicle.

(e) in any race, speed test or contest;

(f) to carry dangerous or hazardous items or illegal materiel.

(g) outside the United States, Canada or the geographic area described elsewhere in this Agreement.

(h) when loaded beyond its capacity as determined by the manufacturer of the Vehicle.

(i) on unpaved surfaces, except at licensed public authorized loading areas or if authorized by us in writing;

(j) to transport more persons than the Vehicle has seat belts, or to carry persons outside the passenger compartment;

(k) to transport children without safety restraint systems required by law, which are installed in accordance with law and manufacturer's specifications;

(l) when the odometer has been tampered with or disconnected;

(m) when the Vehicle 's fluid levels are low, or it is otherwise reasonable to expect you to know that further operation would damage the Vehicle; (n) to carry inadequately secured cargo;

(o) after an accident with the Vehicle unless you summon the police to the accident scene;

(p) to transport an animal (other than a service animal);

(q) in or through any structure or underpass where there is insufficient clearance (width or height);

(r) by anyone who is driving or operating the Vehicle while using a hand -held wireless communication device (or other device that is capable of receiving or transmitting telephonic communications, electronic data, mail or text messages), while not in a hand -free mode;

(s) in violation of any "Rules of the Road," vehicle safety and operations training or other similar materials or instructions that we provide to you at the time of rental; (t) in a reckless manner or with willful or intentional disregard to the Vehicle or to third parties; or

(u) if you leave the Vehicle and fail to remove keys, key fobs, close and lock all doors, and close all windows and the trunk – and the Vehicle is stolen or vandalized.

PROHIBITED USE OF THE VEHICLE VIOLATES THIS AGREEMENT AND VOIDS ALL LIABILITY AND OTHER INSURANCE COVERAGE

(TO THE FULLEST EXTENT PERMITTED BY LAW).

7.Optional Equipment. We may offer certain Optional Equipment, including navigational systems, moving accessories (straps, blankets, dollies), and moving straps or blankets, upon request and subject to availability for your use during the Rental Period at an additional charge. All Optional Equipment is rented as is and must be returned to us at the end of the Rental Period in the same condition as when rented. If you rent a child safety seat, you must inspect and install the child seat into the Vehicle yourself. If you rent a navigational system, you should review the operational instructions before leaving the rental location.

8.Insurance; Handling Accidents/Incidents. You are responsible for all damage or loss to the Vehicle as further described in Paragraph 5 above. You are also responsible for all damage or loss caused by the Vehicle to third parties or their property. You must provide us with proof of insurance indicating that you have primary motor vehicle liability, collision and comprehensive insurance covering you, us, and the Vehicle (and any other coverage required by state law). Your insurance coverage will provide at least the minimum limits of coverage required by the financial responsibility laws of the state where the loss occurs. To the extent required by law, we provide an insurance policy ("Policy") with the following cover age:

(a) Bodily injury ("BI") and property damage ("PD") liability coverage with limits no higher than the minimum amounts stated in the financial responsibility insurance laws of the state whose laws apply to the loss;

(b) Medical payments, Personal injury [Replaced RV wording → cargo van wording] protection ("PIP"), no -fault, or similar coverage where required, which is limited to the minimum amount required by the law of the state whose laws apply to the loss;

(c) Uninsured and/or underinsured ("UM"/"UIM") coverage where required up to the minimum amounts required by the laws of the state whose laws apply to the loss; and

(d) comprehensive and collision insurance covering damage to the Vehicle with a deductible per occurrence. The Policy is excess to any other valid and collectible insurance whether primary, secondary, excess or contingent.

The Policy contains exclusions, conditions, and limitations applicable to anyone claiming coverage. You must:

(a) report all damage to us and all accidents to us and the police as soon as you discover them and complete our incident report form; and (b) provide us with a legible copy of any service of process, pleading, or notice of any kind related to an accident or other incident involving the Vehicle. Coverage under the Policy may be void if you give the Vehicle to an unauthorized driver or otherwise materially breach this Agreement; or if you fail to cooperate in a loss investigation or to file a timely and accurate incident report. The Vehicle may not be taken outside the contiguous United States.

(b) If the customer does not have full insurance coverage, they are required to purchase coverage on the vehicle through MBA Insurance.

(c) Renters are personally responsible for any losses or costs that exceed any existing or purchased insurance coverage.

9. Indemnification. To the fullest extent permitted by law, you agree to indemnify us, defend us and hold us harmless from all claims, liability, costs and attorney fees we incur resulting from, in connection with, or arising out of this Agreement, from the rental transaction, or the use of the Vehicle or Optional Equipment by you or any other person.

10. Payment; Charges. You will pay us at or before conclusion of this rental or on demand all Charges, including:

(a) base rental rate for the Rental Period as noted on the Face Page;

(b)additional driver fee if applicable;

(c) excess mileage fee if applicable;

(d)optional products and services you purchased;

(e) fuel and a refueling fee, if you return the Vehicle with less fuel than when rented (unless we offer, and you purchase, a prepaid fuel option);

(f) taxes, fees, and surcharges;

(g) all expenses we incur locating and recovering the Vehicle if you fail to return it or if we repossess it under the terms of this Agreement;

(h) all costs, including pre - and post -judgment attorney fees we incur collecting payment from you or otherwise enforcing or defending our rights under this Agreement;

(i) a late payment fee (as permitted by law), on all amounts past due;

(j) a return check fee (as permitted by law) if you pay us with a check returned unpaid;

(k) a reasonable fee to clean the Vehicle if returned substantially less clean than when rented or if the Vehicle contains evidence of smoking, vaping, or animals;

(l) towing, storage charges, forfeitures, court costs, penalties, and all other costs we incur resulting from your use of the Vehicle;

(m) a reasonable fee if you lose the keys, key fob, or toll transponder to the Vehicle;

(n) replacement cost of lost or damaged parts and supplies used in Optional Equipment;

(o) a fee up to a reasonable fee if a navigational system that you rented in lost, stolen or otherwise rendered unusable during the rental; and

(p) a surcharge if you return the Vehicle to a location other than the location where you rented the Vehicle or if you return it before or after the date and time due ("Due-In D ate"). If you return the Vehicle earlier or later than the Due -In Date, a different or higher rate may apply, which may be substantially higher than the rates for the initially agreed rental period if a special or promotional rate applied to the initially agreed rental period. You are responsible for all Charges, even if you indicate that someone else will pay. All Charges are subject to a final audit. If errors are found, you authorize us to correct the Charges with your payment card issuer.

11. Reserve; Deposit. You permit us to reserve against your payment card ("Reserve")

or take a cash deposit ("Deposit") at the time of rental a reasonable amount in addition to the estimated charges and understand that those funds will not be available for your use until after the Vehicle is returned. We may use the Reserve or Deposit to pay all Charges. We will authorize the release of any excess Reserve or refund any excess Deposit after the completion of your rental. Your payment card issuer's rules will apply to your account being credited for the excess and it may not be immediately released by your card issuer.

12. Responsibility for Tolls, Traffic Violations, and Other Charges. You are liable for all tolls ("Tolls") and moving violations, parking citations, photo enforcement fees, fines for toll evasion, and other fines, fees, and penalties (each a "Violation") assessed against you, us or the Vehicle during the Rental Period. If we are notified by charging authorities that we may be responsible for payment of a Toll or Violation, you agree that we or a third -party processor of our choosing ("Processor") may, in our sole discretion, and without prior notice to you, pay the Toll or Violation plus applicable taxes, on your behalf directly to the appropriate authority. We (or the Processor) will charge you the face value of the Toll or Violation and any taxes plus an administrative fee as noted on the Face Page for each Toll or

Violation. If we (or a Processor) elect to pay the Toll or Violation, you may not be able to challenge the validity of the Toll or Violation before the issuing authority. We (or a Processor) may, in our sole discretion, elect to transfer liability for any Toll or Violation assessed against the Vehicle during the Rental Period to you personally in jurisdictions that permit such transfers of liability. If liability is transferred to you, we (or a Processor) will charge you an administrative fee as noted on the Face Page. You authorize us to release your rental information, including personally identifiable information, to a Processor and to government officials and other authorities charged with enforcing Tolls and Violations. If we or a Processor pay a Toll or Violation assessed on the Vehicle during the Rental Period, you authorize us or the Processor, to charge all payments and administrative fees to the payment card you used to pay for this rental, which will appear as a charge on your payment card invoice after conclusion of the rental. You authorize us to contact you directly or to send invoices regarding any tolls, citations, fines, or penalties incurred by you or assessed against us to our Vehicle while the Vehicle was rented by you. Certain toll roads do not accept cash. To avoid toll violations and associated fines, fees, and taxes (and our administrative fees), you must pay all tolls with a personal transponder that is accepted on the road; use only cash lanes and pay cash; plan a route to avoid tolls; or consult local authorities for other payment methods.

13. Our Responsibility to You if the Vehicle becomes Inoperable. If the Vehicle becomes inoperable for more than 24 hours, our liability to you is limited to the daily rental rate times the number of days the Vehicle is inoperable.

14. Personal Information. You agree that we may disclose personally identifiable information about you to third parties in connection with our enforcement of our rights under this Agreement and for other legitimate purposes. See https://cargoatlanta.com/privacy-policy/ for a copy of our privacy policy.

15. Telematics Notice. (a) You acknowledge that the Vehicle may be equipped with global positioning satellite ("GPS") technology, a telematics system, and/or an event data recorder (collectively, "Telematics Systems"). Your use of this Vehicle may be remotely (Insert Privacy Policy Link) monitored by us or on behalf of us through Telematics Systems to the fullest extent permitted by law. This remote monitoring may include the collection of Vehicle data, such as: location, odometer, oil life, fuel level, tire pressure, battery state of charge, diagnostic trouble codes, as well as other elements we may deem necessary as permitted by la w. Once collected, the Vehicle data may be combined with other information that you have provided to us and used to generate safety, performance, and other similar information so that we can deliver better services. Our use of the information collected from the Vehicle may include sharing the data with third parties (such as our service providers), as well as storage of this information after the expiration of your rental agreement. You agree to inform all drivers and passengers of the Vehicle of the terms of this paragraph

15. We are not responsible for the operability of any Telematics System included with the Vehicle.

(b) If your Vehicle has active Telematics System equipment, you understand that your use of the Vehicle is subject to the third -party Telematics System operator's terms and conditions, which may include system and service limitations, warranty exclusions, limitations of liability, and privacy practices relating to the collection, use, and sharing of information about you and the Vehicle. If the Vehicle does not have an active Telematics System, you agree not to activate it. If you do activate a service in violation of this Agreement, you will be responsible for all subscription fees.

(c) We also reserve the right to use the Vehicle Telematics System in connection with your smart phone or other device to process the rental, including the start and end time, fuel levels, and mileage (to the fullest extent permitted by law).

16. Electronic Communications and Consent; Transactional Email s and Texts

(a) Generally. To the fullest extent permitted by law, we may provide this Agreement and any notices or other communications (including by e -mail) regarding this Agreement, reservations, or rental of Vehicles ("Communications") to you electronically, and you agree to receive Communications from us in an electronic form. We may deliver Electronic Communications to the email address that you provide to us when entering into this Agreement or otherwise. All Communications in either electronic or paper format will be considered to be in "writing." All Communications will be considered to have been received no later than five (5) business days after dissemination, whether or not you have received or retrieved the Communications. Although we reserve the right to provide Communications in paper format to you at the postal address you provide to us, you expressly agree that any notice or other Communications due under this Agreement may be given in email form to the email address that you provide to us. Your consent to receive Communications electronically is valid until you revoke your consent.

(b) Texting & calling. By executing this Agreement, you consent to us and/or our representatives contacting you at the phone number(s) provided in connect ion with this Agreement for the purpose of delivering informational or transactional outreach, including customer surveys, via live, pre -recorded, or autodialed calls or texts. Your consent to receiving these calls or texts is not a condition of this Agreement or any other agreement with us.

17. Personal Property. To the fullest extent permitted by law, You waive all claims all claims against us, our agents and employees for loss of or damage to the personal property of you or another person , which we received, handled, or stored, or which was left or carried in or on the Vehicle or in any service vehicle or in our offices, whether or not the loss of damage was caused by our negligence or was otherwise our responsibility. The Vehicle may be equipped with infotainment systems that deliver Information and

entertainment content (such as Bluetooth, navigation systems, music streaming systems). An infotainment system may download your contacts, communications, location or other personal information, and you should wipe all personal information from the Vehicle's systems before returning it.

18.Miscellaneous. No term of this Agreement can be waived or modified except by a writing that we have signed. This Agreement constitutes the entire agreement between you and us about the subject matter, and all prior representations and agreements between you and us regarding this rental is void. A waiver by us of any breach of this Agreement is not a waiver of any additional breach or waiver of the performance of your obligations under this Agreement. Our acceptance of payment from you or our failure, refusal or neglect to exercise any of our rights under this Agreement does not constitute a waiver of any other provision of this Agreement. To the fullest extent permitted by law, you:

(a) waive all recourse against us for any criminal reports or prosecutions that we take against you that arise out of your breach of this Agreement; and

(b) release us from all liability for consequential, special or punitive damages in connection with this rental or the reservation of a vehicle. Unless otherwise provided, any reference t o a statute or regulation will be deemed to be a reference to statute or regulation as amended from time to time or to a newly adopted statute or regulation replacing a repealed statute or regulation. If any provision of this Agreement is deemed void or unenforceable, the remaining provisions are valid and enforceable.

The Renter hereby acknowledges that they have read, understood, and agree to all the terms and conditions stated in this rental contract.

Renter's Signature: Date:

Renter's Full name:

Owner's Signature: David B. Waxman Date:

Owner's Name: David. B Waxman